

An important part of the evidence of either party is often taken from documents in the possession of the opposite party, and, to compel the production of such papers, there are the following rules:—

1850.
XXXI.
Production of
papers, by
either party.

On motion of
course.

May be en-
forced by
order, on
motion after
notice.

What docu-
ments to be
produced.

Either the plaintiff or defendant may at any time after answer obtain an Order of course, requiring the adverse party to produce, within a time to be limited by the order, all deeds, papers, writings and documents in his custody or power, relating to the matters in question in the cause under oath, and deposit the same with the Registrar of the Court for the usual purposes. *Provided always, that neither the plaintiff nor the defendant shall be bound in pursuance of such order to produce any deeds, papers, writings, or documents, which a defendant now admitting the same by his answer to be in his custody or power would not be bound to produce.* Any party objecting to the production of deeds, papers, writings, or documents, in his custody or power, shall, in the affidavit to be made upon such occasion, assign the reason for his declining or refusing to produce the same; and, in case the party obtaining such order shall have reason to think that the exigency of the same has not been fully complied with, he may apply to the Court, upon notice, for an order to compel the production and deposit of such deeds, papers, writings, or documents as he may have reason to think should be produced, and may support such applications by the pleadings, or by affidavit, or both, as he may be advised; and thereupon the Court may make such order as may seem just.

Under this Order, it will often be important to consider what documents a party was, under the former practice, compellable to produce. The cases on the subject are very numerous. The Defendant can, it seems, under this Order compel the production of the documents stated in the bill as those on which the Plaintiff relies, and which are stated to be in his own possession, see *Bate vs. Bate*, 7 Beaven, 528; and *Taylor vs. Henning*, 4 Beaven, 235. These cases show, that without any such order as this, the Court would still, in some cases take means to give the defendant the inspection of documents clearly material. And it is apprehended, that now the Plaintiff would be compelled to produce any such documents as the Defendant is compellable to produce. Among the cases tending to show

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